

Criminalisation and the Harm Principle

A Legal English study guide to theories of criminal law

This guide asks a question that comes before the elements of any particular offence: when is the state justified in making conduct criminal? Criminalisation restricts liberty and exposes a person to investigation, prosecution, punishment and possibly imprisonment. A convincing justification is therefore required.

The central theory examined here is the harm principle. In its simplest form, it argues that coercive criminal law is justified when it prevents harm to others. The guide also introduces legal moralism as a contrasting theory, but does not examine it in detail.

Learning objectives

- **Define criminalisation** and distinguish it from punishment.
- **Explain the harm principle** and its connection with individual liberty.
- **Recognise different forms of harm** including direct harm, risk of harm and wider social harm.
- **Explain why harm alone may not be sufficient** to justify making conduct criminal.
- **Apply a structured method** to new examples of possible criminalisation.

Criminalisation and punishment are different questions

Question	What it asks	Example
Criminalisation	Should this conduct be a criminal offence at all?	Should driving without insurance be criminal?
Punishment	What response is justified after an offence is proved?	Fine, community order or imprisonment?

Theories of criminalisation justify the creation and scope of offences. Theories of punishment, such as deterrence, rehabilitation, incapacitation and retribution, explain why and how the state punishes after criminal liability has been established.

What criminalisation means

Criminalisation is the legal process by which conduct is made a criminal offence. It does more than express social disapproval. It authorises the state to investigate, arrest, prosecute and punish people who engage in the prohibited conduct.

Criminalisation restricts liberty in two ways. First, it tells individuals that they must not perform the prohibited action. Second, it attaches coercive consequences if they do so, including possible loss of physical liberty through imprisonment.

The burden of justification is therefore high. It is not enough to say that conduct is unpopular, unpleasant or unusual. The state must explain why criminal prohibition is necessary and why less restrictive measures would not be sufficient.

Two traditional theories

Theory	Basic claim	Central question
Harm principle	Conduct may be criminalised to prevent harm to others.	Who may be harmed, and how serious or likely is the harm?
Legal moralism	Conduct may be criminalised because it is morally wrong.	Can immorality itself justify criminal prohibition?

The theories may overlap, but they are not identical. Murder is both gravely harmful and morally wrong. More difficult examples arise where conduct is regarded as immoral but causes no clear harm to others, or where conduct creates risk without producing immediate injury.

John Stuart Mill and the harm principle

John Stuart Mill begins with individual liberty. In *On Liberty*, he argues that coercive power over a competent member of a civilised community is justified only to prevent harm to others. The short formula is: “to prevent harm to others.”

The principle is a limit on state power. It does not merely ask whether prohibition would be useful. It asks whether the state has a sufficiently strong reason to override an individual's freedom of action.

A strict Millian approach is especially suspicious of paternalism. If conduct affects only the actor, preventing that person from making a harmful choice for his or her own good is harder to justify under the harm principle. Once the conduct creates harm or a serious risk to others, the argument for intervention becomes stronger.

Easy applications

- **Murder and manslaughter:** the victim suffers the ultimate direct harm, while the tolerance of lethal violence also threatens security across society.
- **Sexual offences:** the conduct violates autonomy and bodily integrity and may cause physical and psychological harm.
- **Theft and other property offences:** the victim loses property, control or economic value, and general tolerance of theft would undermine social trust.

These examples are comparatively easy because the victim, the interest protected and the harm are readily identifiable. They do not, however, resolve the difficult cases at the edge of criminal law.

Different forms of harm

Form of harm	Meaning	Illustration
Direct harm	The conduct itself injures a specific person or interest.	Killing, assault or theft
Risk of harm	The conduct creates a serious possibility of future injury.	Driving without third party insurance
Wider social harm	The conduct damages public security, trust or an institution.	Systematic violence or fraud
Cumulative harm	One act may be small, but repeated acts create substantial harm.	Repeated low level pollution

The difficult example of driving without insurance

A person may complete an uninsured journey without causing an accident. The absence of immediate injury does not mean that the offence lacks a harm-based justification. The conduct creates a risk that an injured third party will not receive the financial protection required by law.

The protected interest is therefore prospective rather than immediate. Section 143 of the Road Traffic Act 1988 requires the relevant insurance or security. This illustrates how criminal law may respond to a sufficiently serious risk before the feared harm actually occurs.

Risk-based offences require careful limits. If every remote possibility of harm justified criminalisation, the criminal law could expand without a principled boundary. The seriousness and probability of the risk therefore matter.

Harm and proportional punishment

Different offences may all be justified by harm while attracting very different punishments. Murder and driving without insurance are both criminal offences, but their gravity is radically different. The criminal justice system reflects that difference through offence classification, sentencing ranges and the punishment imposed in the individual case.

Proportionality does not answer the first question by itself. A mild punishment cannot automatically justify making conduct criminal. The state must first justify criminalisation and then justify the severity of punishment.

Why harm is not automatically sufficient

Joel Feinberg develops a more demanding analysis of harm. The existence of some disadvantage or injury does not automatically mean that criminal prohibition is justified. The state must consider the nature of the harm and the costs of using criminal law.

Gravity of the harm

How serious is the threatened setback to another person's interests? Death, serious injury and major property loss provide stronger reasons for criminalisation than trivial inconvenience or temporary irritation.

Magnitude of the risk

How much harm could occur if the risk materialises? A low probability of catastrophic injury may still justify regulation, while a similar probability of minor annoyance may not.

Probability of the harm

How likely is the harm to occur? Criminalisation is harder to justify when the connection between the conduct and the feared injury is speculative or extremely remote.

Necessity and alternatives

Is criminal law necessary? Civil liability, licensing, education, taxation or administrative regulation may sometimes reduce harm without the stigma and coercion of criminal punishment.

Enforcement and social cost

Can the offence be enforced fairly and proportionately? Investigation and prosecution consume public resources and may intrude into private life. A prohibition that cannot be applied consistently may produce arbitrary or selective enforcement.

A simple balancing idea

The stronger the harm and the more probable it is, the stronger the case for criminalisation. The weaker, more subjective or more remote the harm, the more important it becomes to consider alternatives and the costs of criminal law.

Disputed and subjective harms

Not every alleged harm is understood in the same way by everyone. Some harms are widely recognised, such as death, bodily injury and loss of property. Other claims depend more heavily on contested scientific evidence, social values or predictions about future behaviour.

Disagreement does not make harm irrelevant. It means that lawmakers must identify the evidence, define the protected interest and explain why criminal prohibition is justified rather than simply asserting that something is harmful.

Energy drinks as a changing example

The source lecture states that the law already requires a purchaser to be 16. That statement needs qualification. For many years, restrictions used by major retailers were voluntary rather than a general criminal prohibition in England.

The legal position is now changing. In July 2026, the government confirmed that England will prohibit the sale of high-caffeine energy drinks to people under 16 from April 2027. The planned rule concerns drinks containing more than 150 milligrams of caffeine per litre and will apply to in-store, online and vending-machine sales.

The example is useful precisely because it shows the stages of criminalisation. Scientific and policy arguments identify a possible harm; lawmakers assess its seriousness and the affected group; a legal rule is designed; and only when the rule enters into force does the conduct become legally prohibited on that basis.

A method for analysing proposed criminalisation

- 1 Define the conduct.** State exactly what action or omission would be prohibited.
- 2 Identify the liberty restricted.** Explain what individuals would no longer be free to do.
- 3 Identify the victim or protected interest.** Who may be harmed, and what interest is threatened?
- 4 Describe the form of harm.** Is it direct, risk-based, social, cumulative or disputed?
- 5 Assess seriousness and probability.** Consider gravity, magnitude of risk and likelihood.
- 6 Examine alternatives.** Could civil, regulatory or educational measures reduce the harm?
- 7 Test proportionality and enforceability.** Would criminal law impose excessive stigma, punishment or enforcement costs?
- 8 Consider competing theories.** Is the real argument based on harm, legal moralism, paternalism or a combination?

Worked comparisons

Conduct	Harm analysis	Criminalisation issue
Murder	Certain, grave and direct harm to an identifiable victim	Strong and straightforward justification
Driving without insurance	Risk that an injured third party lacks required financial protection	Preventive offence based on serious risk
Minor shove	Direct but usually limited harm; circumstances matter	Criminal law must distinguish trivial and meaningful interference
High-caffeine energy drink sale to a child	Disputed and evidence-based health risk to a protected age group	Shows how policy evidence may lead to a future prohibition

Common mistakes

- **Mistake one:** assuming that anything harmful must be criminal. Harm may support criminalisation, but it does not settle necessity or proportionality.
- **Mistake two:** looking only for completed injury. Criminal law may address sufficiently serious risks before injury occurs.
- **Mistake three:** confusing criminalisation with sentencing. Whether conduct should be criminal and how severely it should be punished are separate questions.
- **Mistake four:** calling conduct harmful without identifying a victim, protected interest or evidence.
- **Mistake five:** treating current retailer policy or a future legal reform as if it were already an offence in force.

Key terms

Criminalisation: the process by which conduct is made a criminal offence

Harm principle: the view that coercion may be justified to prevent harm to others

Legal moralism: the view that immorality may justify criminal prohibition

Liberty: the freedom of an individual to choose and act

Paternalism: restricting a person for that person's own welfare

Direct harm: injury caused immediately to a person or protected interest

Risk of harm: a possibility of future injury created by conduct

Proportionality: the requirement that state interference is not excessive in relation to its aim

Final point

The harm principle offers a powerful reason for criminalisation, but it is not a mechanical formula. A careful analysis must identify the harm, evaluate its seriousness and probability, consider less restrictive alternatives and explain why the coercive force of criminal law is necessary.

The central question is not simply whether conduct is bad. It is whether the state has a sufficiently strong and principled justification for making that conduct a crime.

Sources and further reading

John Stuart Mill, On Liberty, chapter 1.

Joel Feinberg, The Moral Limits of the Criminal Law, volume 1, Harm to Others.

Road Traffic Act 1988, section 143.

Department of Health and Social Care, Children's health further protected with energy drinks ban, 16 July 2026.